

[Note by the editor: This decision is made partially accessible in a heavily redacted form due to § 23 para. 2 DSG, considering the predominantly legitimate interests of the complainant, an employee of the former Federal Office for the Protection of the Constitution and Counter-Terrorism (BVT), particularly without verbatim reproduction of the ruling, the parties' submissions, and the factual findings.]

DECISION

RULING

[Note by the editor: A complaint against the Federal Ministry of the Interior, BVT, was upheld, and a violation of the right to confidentiality was established due to the disclosure of data to the BVT investigation committee of the National Council (BVT-UA).]

Legal Basis: Art. 51 para. 1, Art. 57 para. 1 lit. f, as well as Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; Art. 52a, Art. 53, and Art. 138b of the Federal Constitutional Law (B-VG), Federal Law Gazette No. 1/1930 as amended; §§ 1, 18 para. 1 as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

[Note by the editor: not reproduced, see reasoning above]

B. Subject of the Complaint

[Note by the editor: not reproduced, see reasoning above]

C. Factual Findings

[Note by the editor: not reproduced verbatim, see reasoning above. In summary, the professional position of the complainant in 2018 was compromised by the disclosure of details of their duties during a file submission classified as "Confidential" to the BVT-UA, whereby the data was distributed to at least 18 persons - the 18 members of the BVT-UA - and 183 persons - namely all members of the National Council - were able to access their personal data.]

D. Legally, it follows that:

D.1. Legal Basis

§ 1. Right to Data Protection

(1)

Everyone has the right to confidentiality regarding their personal data, particularly with respect to the respect for their private and family life, as far as a legitimate interest exists. The existence of such an interest is excluded if data, due to their general availability or because they cannot be traced back to the affected individual, are not accessible to a confidentiality claim.

(2)

As far as the use of personal data does not occur in the vital interest of the affected individual or with their consent, restrictions on the claim to confidentiality are only permissible to protect overriding legitimate interests of another party, and in the case of interventions by a state authority, only based on laws that are necessary for the reasons mentioned in Art. 8 para. 2 of the European Convention on Human Rights and Fundamental Freedoms (ECHR), Federal Law Gazette No. 210/1958. Such laws may only provide for the use of data that are particularly worthy of protection by their nature to safeguard important public interests and must simultaneously establish adequate guarantees for the protection of the confidentiality interests of the affected individuals. Even in the case of permissible restrictions, the intervention in the fundamental right must always be carried out in the least intrusive manner necessary to achieve the objective.

D.2. Regarding the present case:

In the present case, it concerns the fact that the respondent has transmitted unredacted files concerning the complainant at the classification level "Confidential" (Level 2) to the BVTUA, thereby disclosing their personal data [Note from the editor: here abbreviated].

D.2.a: Violation of the right to confidentiality to the extent of the infringement of Art. 53 para. 3 last

sentence B-VG

In this context, reference should be made to the ruling of the Constitutional Court UA 2/2015 dated June 15, 2015, in which it already dealt with the redaction of files to be submitted to an investigative committee and the relationship between the constitutionally protected Art. 8 ECHR and § 1 DSG on the one hand and Art. 53 B-VG on the other hand, and stated as follows (emphasis by the Data Protection Authority):

“2. In the matter

2.2. The Federal Minister of Finance summarizes the opinion that in the context of the submission of files and documents to an investigative committee, the "constitutional and fundamental rights" limitations must be observed. All constitutional provisions (Art. 53 B-VG, § 1 DSG 2000, and Art. 8 ECHR [as well as Art. 8 CFR]) would systematically stand on the same level and must be applied cumulatively (side by side). With the (constitutional) legislative measures for the reform of the investigative committee, the (constitutional) legislator did not associate any changes to the (legal) confidentiality and secrecy obligations to be observed by the requested bodies (§ 38 BWG, § 48a BAO). Art. 53 B-VG as amended by Federal Law Gazette I No. 101/2014 did not (substantively) derogate from the other mentioned provisions.

2.3. The requesting quarter of the members of the Hypo-Investigative Committee, on the other hand, summarizes the opinion that Art. 53 para. 3 first sentence B-VG provides for a comprehensive obligation to transmit all files within the scope of the subject of investigation to ensure effective control according to the constitutionally provided mandate of an investigative committee, which is concretized by the subject of investigation of its establishment (exceptions are only the cases conclusively regulated in Art. 53 para. 3 last sentence and para. 4 B-VG). The protection interests of Art. 8 ECHR and § 1 DSG 2000 are taken into account by the investigative committee itself.

necessary confidentiality and make the corresponding balancing of interests. For this purpose, a number of legal provisions have been newly enacted for all stages of the procedure (in particular, especially worthy of protection information is to be classified – provided the legal requirements are met).

2.4. According to Art. 53 para. 1 B-VG, the National Council can establish investigative committees by resolution; such a committee must also be established at the request of a quarter of its members. The subject of the investigation is, according to Art. 53 para. 2 B-VG, a specific completed event in the area of federal execution (a review of the judiciary is excluded), including all activities of federal bodies through which the federal government, regardless of the level of participation, exercises economic participation and supervisory rights. The already mentioned obligation of all federal bodies, among others, to present their files and documents to an investigative committee upon request within the scope of the subject of the investigation does not apply according to Art. 53 para. 3 B-VG to the submission of files and documents whose disclosure would endanger sources within the meaning of Art. 52a para. 2 B-VG. According to Art. 53 para. 4 B-VG, this obligation also does not exist to the extent that it would impair the lawful formation of will of the federal government or of individual members thereof or their immediate preparation.

2.5. The scope of the obligation to submit files and documents can be derived from Art. 53 B-VG: The National Council is granted special opportunities in Art. 53 B-VG (Section "E. Participation of the National Council and the Federal Council in the Execution of the Federal Government" of the second main part of the B-VG ["Legislation of the Federal Government"]) through which the activity of an investigative committee can obtain information necessary for the exercise of the control and legislative function assigned to the legislative body by the Constitution. The aim of the investigative committee is to clarify events for political purposes (AB 439 BlgNR 25. GP, 2). The task that the Federal Constitution assigns to the National Council limits the rights and obligations of the investigative committee. With its establishment, the subject of the investigation is also determined.

2.6. Without knowledge of all files and documents "within the scope of the subject of the investigation" (Art. 53 para. 3 B-VG), the fulfillment of the control mandate constitutionally assigned to the investigative committee is not possible (cf. in connection with the audit mandate of the Court of Auditors already VfSlg. 4106/1961). The only exceptions to the obligation to submit are stipulated by Art. 53 para. 3 last sentence and para. 4 B-VG itself: The submission of files and documents whose

disclosure would endanger sources within the meaning of Art. 52a para. 2 B-VG is not covered by the obligation under para. 3; para. 4 furthermore provides that the obligation according to para. 3 does not exist "to the extent that the lawful formation of will of the federal government or of individual members thereof or their immediate preparation is impaired."

2.7. In this limited scope of the subject of the investigation defined by the tasks of the investigative committee, neither the provision of § 1 DSG 2000 nor that of Art. 8 EMRK (as well as Art. 8 GRC) stand in the way of the transmission of the files and documents requested by the investigative committee. The same must apply even more so to the – to be interpreted in accordance with the Constitution – statutory provisions of § 38 para. 1 to 4 BWG and § 48a BAO (if they had a different content, they would be unconstitutional due to a violation of Art. 53 B-VG; cf. VfSlg 15.130/1998 regarding a procedure under Art. 144 B-VG).

2.8. The information-obligated body must therefore submit the requested files and documents within the scope of the subject of the investigation unredacted (uncovered) without regard to any existing confidentiality obligations (cf. VfSlg 17.065/2003 and 19.834/2013 regarding procedures under Art. 126a B-VG). If the legal requirements are met, particularly worthy of protection information must, however, be classified according to the provisions of the InfOG, which was enacted on the basis of Art. 30a B-VG and created simultaneously with the reform of the foundations and procedures of investigative committees.

[...]

2.10. In summary, it can be stated that an obligation to present documents according to Art. 53 para. 3 B-VG – apart from the exceptions regulated in the last sentence of para. 3 and para. 4 – does not exist to the extent that files and documents are not covered by the subject of investigation. The assessment of this question is primarily the responsibility of the information-obligated body. If there is a disagreement on this matter between the investigative committee, a quarter of its members, and the information-obligated body, the Constitutional Court can be called upon in accordance with Art. 138b para. 1 no. 4 B-VG, which has the final authority to decide this question (...).

Applying this jurisprudence to the present case means that the respondent was (constitutionally) legally obligated under Art. 53 para. 3 first sentence B-VG to present its documents to the BVT-UA upon request and within the scope of the subject of investigation without redaction. However, according to Art. 53 para. 3 last sentence B-VG, this does not apply to files and documents whose disclosure would endanger sources in the sense of Art. 52a para. 2.

As far as it concerns personal data of the complainant that are not directly related to his activity as [Note by the editor: here shortened], the presentation to the BVT-UA was therefore lawful.

Art. 53 para. 3 last sentence B-VG regulates the confidentiality interest of "sources" and thus constitutes an exception to the otherwise applicable obligation to present to an investigative committee. However, in the case of the complainant, as established, it concerns a [Note by the editor: here shortened] of the BVT, thus a intelligence source in the sense of this provision.

Art. 53 para. 3 last sentence B-VG contains an objective obligation that the presenting body must comply with. However, a subjective right of an affected party to ensure compliance with this provision cannot be derived from it. Legal protection in this case is governed by Art. 138b B-VG, which does not provide for an individual right of complaint for a person affected by a presentation (see VfSlg. 20.303/2018).

If personal data is presented contrary to this provision, this objective legal violation results in a violation of the constitutionally guaranteed and subjective right to confidentiality according to § 1 DSG, which can be asserted by affected persons through a complaint according to § 24 DSG against the presenting body (see again VfSlg. 20.303/2018).

It can therefore be stated that the unredacted transmission of the personal data of the complainant identified under C.3, insofar as it concerns his activity as [Note by the editor: here shortened], violates the confidentiality interests of sources regulated in Art. 53 para. 3 last sentence B-VG. Thus, the unconstitutional, because unredacted, transmission of the personal data of the complainant identified under C.3 constitutes a violation of the right to confidentiality according to § 1 DSG to the extent of the violation of Art. 53 para. 3 last sentence B-VG.

As stated in the constitutional provision of § 1 Abs. 2 last sentence DSG, "even in the case of

permissible restrictions (...) the interference with the fundamental right must be carried out in the least intrusive manner necessary to achieve the objective."

As noted under C.2, the files concerning the complainant were transmitted unredacted at the classification level "Confidential" to the BVT-UA. Thus, the transmission in question was not carried out in the least intrusive manner necessary to achieve the objective. Rather, the transmission in question is disproportionate in the sense of § 1 Abs. 2 last sentence DSG: The objective pursued by the respondent – to demonstrate that personnel measures taken concerning the complainant were rationally justified and free from political influence – could have been achieved, as far as it concerns his activities as [Note by the editor: here abbreviated], by transmitting redacted files, i.e., without personal data of the complainant, to the BVT-UA.

D.2.b: Priority of Application of Art. 5 Abs. 1 lit. a and c DSGVO

With regard to directly applicable Union law, which enjoys priority of application in relation to conflicting national (constitutional) law (see, for example, Mayer/KucskoStadlmayer/Stöger, Federal Constitutional Law¹¹ (2015), Rz 246/9), it is particularly important to refer to the directly applicable Art. 5 Abs. 1 lit. a and c DSGVO – the principles of lawfulness, processing in good faith, transparency on the one hand, and data minimization on the other hand.

Art. 5 Abs. 1 lit. a DSGVO stipulates that personal data must be processed lawfully, fairly, and in a manner that is transparent to the data subject. Processing in good faith particularly requires that in the application of the law in certain processing situations, the "reasonable expectations" of the data subject must be taken into account. It is therefore contrary to good faith if processing occurs without or with insufficient knowledge of the data subject or if it is not in line with the expectations raised by the controller regarding its nature or scope (see Heberlein in Ehmann/Selmayr (eds), General Data Protection Regulation², Art 5 lit a, Rz 10 (2018)). In the present case, it was likely not comprehensible for the affected complainant, and he could not "reasonably expect" that his personal data identified under C.2 would be transmitted unredacted to the BVT-UA.

Art. 5 Abs. 1 lit. c DSGVO further stipulates that personal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed. According to this principle, personal data may only be processed if the purpose of the processing cannot be reasonably achieved by other means. This implies that personal data may only be accessed if no alternative method is available to achieve the intended purpose of the processing (see Heberlein in Ehmann/Selmayr (eds), General Data Protection Regulation², Art 5 lit a, Rz 22 (2018)). As outlined under C.2 and D.2.a, the intended purpose of the transmission was to demonstrate that personnel measures taken concerning the complainant were rationally justified and free from political influence. This purpose could also have been achieved, as far as it concerns the complainant's activities as [Note by the editor: here abbreviated], by transmitting redacted files while maintaining the confidentiality interests of the complainant.

D.2.c: Ruling of the German Federal Constitutional Court 2 BvE 4/18 of December 16, 2020

Finally, reference should be made to the ruling of the German Federal Constitutional Court regarding GZ 2 BvE 4/18 of December 16, 2020, in which it rejected a request from certain factions in the investigative committee concerning the attack on the Berlin Christmas market on December 19, 2016, within the framework of an organ dispute procedure.

To clarify the background of this attack and any shortcomings of the responsible authorities, the German Bundestag established an investigative committee. In light of media reports that the Federal Office for the Protection of the Constitution had maintained at least one informant (V-Person) in the vicinity of a mosque regularly visited by the attacker, the investigative committee requested the Federal Ministry of the Interior, Building and Community to name the employees involved in the handling of the informant in this case. The Federal Ministry refused to disclose the name of the informant's handler, particularly citing the significant adverse effects that the informant's questioning in the investigative committee would have on the functionality and operational capability of the Federal Office for the Protection of the Constitution. According to the Federal Constitutional Court, this refusal

does not violate the evidentiary rights of the investigative committee under Art. 44 Abs. 1 sentence 1 GG, as the parliamentary interest in clarification must exceptionally yield to the interests of state welfare, taking into account the specifics of the particular source deployment in question.

Based on the above, the complaint was to be upheld to the extent mentioned, and a violation of the complainant's right to confidentiality was to be established.

It was thus to be decided accordingly.